



Instructions for Registration for Direct and Third-Party Promoters

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-956K
OMB No. 1615-0159
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What Is the Purpose of Form I-956K?

The Form I-956K, Registration for Direct and Third-Party Promoters, must be completed by each person acting as a direct or third-party promoter (including migration agents) of a regional center, any new commercial enterprise (NCE), an affiliated job-creating entity (JCE), or an issuer of securities intended to be offered to alien investors in connection with a particular capital investment project and is participating in the Regional Center Program. This includes subagents or employees of entities with agreements in place to promote a regional center, any new commercial enterprise, an affiliated job-creating entity, or an issuer of securities intended to be offered to alien investors that are promoting the regional center, new commercial enterprise, affiliated job-creating entity, or issuer of securities to alien investors.

Regional centers, new commercial enterprises and job-creating entities do not need to separately file a Form I-956K if they are involved solely in the promotion of any offering of securities associated with such entities in a related filing such as Form I-956F.

When Must the Form I-956K Be Filed?

A promoter should submit Form I-956K before operating on behalf of any of the specified entities or promoting any offering under the EB-5 Regional Center Program. The promoter must submit Form I-956K separate from the Form I-956F, Application for Approval of an Investment in a Commercial Enterprise, to seek approval of an investment in a commercial enterprise.

Any promoter employed to work as a promoter or otherwise engaged as a promoter on behalf of another promoter (including an entity) must submit Form I-956K and complete **Part 2.** about themselves and **Part 3.** to indicate the individual or entity employing them as a promoter. **Part 2., Item Number 20.,** provides an area for these types of promoters to provide the necessary information for registration and provide USCIS information about the entity or individual that employs them.

A promoter must file an amendment if the list of entities identified in **Part 3., Item Number 2.** on the promoter's initial Form I-956K registration changes, either by the promoter entering into, terminating, or amending an agreement with an entity. The amendment must identify **all** entities the promoter currently operates on behalf of and not just the entity(ies) added or removed.

General Instructions

We provide free forms through the USCIS website. To view, print, or fill out our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your petition. USCIS will not accept a stamped or typewritten name in place of any signature on this petition. If you are under 14 years of age, your parent or legal guardian may sign the petition on your behalf. A legal guardian may also sign for a mentally incompetent person. If your petition is not signed, or if the signature is not valid, we will reject your petition. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form.

Evidence. At the time of filing, you must submit all evidence and supporting documents listed in the **Specific Instructions** section of these Instructions.

Biometric Services Appointment. USCIS may require you to appear for an interview or provide biometrics (fingerprints, photograph, and/or signature) at any time to verify your identity, obtain additional information, and conduct background and security checks, including a check of criminal history records maintained by the Federal Bureau of Investigation (FBI), before making a decision on your application or petition. If we determine that a biometric services appointment is necessary, we will send you an appointment notice with the date, time, and location of your appointment. If you are currently overseas, your notice will instruct you to contact a U.S. Embassy, U.S. Consulate, or USCIS office outside the United States to schedule an appointment.

At your biometrics appointment, you must sign an oath reaffirming that:

1. You provided or authorized all information in the registration;
2. You reviewed and understood all of the information contained in, and submitted with, your registration; and
3. All of this information was complete, true, and correct at the time of filing.

If you do not attend your biometrics services appointment, we may deny your registration.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

NOTE: If you submit original documents when not required or requested by, **USCIS may destroy them after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that they are competent to translate from the foreign language into English. The certification must also include their signature, printed name, the signature date, and their contact information.

USCIS Contact Center. For additional information on the petition and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call at **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at www.uscis.gov/accommodationsinfo.

How To Complete Form I-956K

1. Type or print legibly in black ink.

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2. If you need extra space to complete any item within this form, use the space provided in **Part 9. Additional Information** or attach a separate sheet of paper. Type or print your name and Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.
3. Answer all questions fully and accurately. If a question does not apply to you (for example, if you have never been married and the question asks “Provide the name of your current spouse”), type or print “N/A” unless otherwise directed. If your answer to a question which requires a numeric response is zero or none (for example, “How many children do you have” or “How many times have you departed the United States”), type or print “None” unless otherwise directed.
4. **USCIS Online Account Number.** Registrant's will only have a USCIS Online Account Number (OAN) if they previously filed a form that has a receipt number that begins with IOE. If they filed the form online, they can find their OAN in their account profile. If they mailed us the form, they can find their OAN at the top of the Account Access Notice we sent them. If they do not have a receipt number that begins with IOE, they do not have an OAN. The OAN is not the same as an A-Number.

Specific Instructions

Part 1. Type of Registration

Item Number 1. Select the type of registration. If this is an initial registration, identify the type of promoter being registered (select all that apply).

Item Number 2. If this is an amendment to a previously filed registration, include the registration number of the promoter and complete all remaining parts of the form.

Item Number 3. Amendment Type. If the Form I-956K you are filing is an amendment, select the appropriate box to indicate the type of changes being requested by your amendment. **NOTE:** Your amendment must continue to provide the names and information of **all** entities with which you currently maintain a written agreement in the table in **Part 3., Item Number 2.** at the time of filing the amendment.

Part 2. Registrant Information

Item Number 5. Country of Citizenship or Nationality. Provide the name of the country where you are a citizen and/or national. This is not necessarily the country where you were born. If you do not have citizenship in any country, type or print “stateless” and provide an explanation in **Part 9. Additional Information**.

Part 3. Written Agreement(s)

Item Number 1. If you are operating on behalf of a regional center, NCE, or an affiliated JCE, indicate whether you have entered into the written agreement(s) required under INA section 203(b)(5)(K)(iii).

Item Number 2. For each written agreement, provide the title of the written agreement, the date it was executed or amended, and its parties. “Parties” refers to the legal name of the regional center entity, NCE, and/or JCE. Indicate whether the entity is a regional center, NCE, JCE, or an issuer of securities. Provide the relevant regional center IDs and NCE IDs (if available). Provide this information for active or planned promotional activities. Do not include written agreements related to inactive or completed promotions.

We recommend that you print or save a copy of your completed form to review in the future and for your records.

Evidence to Accompany Registration

The following evidence should, when applicable, be filed with your registration:

- 1. For individuals**, a copy of a valid government-issued identification card and copies of all passports.
- 2. For organizations**, a copy of the organization's current formation documents along with any other filings under which the organization is authorized to do business (such as foreign entity registration documents and fictitious business name statements).
- 3.** You must confirm the existence of any written agreement required by the Immigration and Nationality Act (INA) section 203(b)(5)(K)(iii) by describing such agreement in the relevant part and submitting a copy of such agreement with this form. If you are an employee of a promoter engaging in promotional activities on its behalf and your employer has submitted its own Form I-956K along with copies of relevant written agreements, you may reference that filing and any relevant agreements without submitting a copy of such agreements. If you are not an employee of a promoter but have otherwise been engaged to conduct promotional activities on its behalf, such as a subagent, and the primary promoter has submitted its own Form I-956K along with copies of relevant written agreements, you may reference that filing and any relevant agreements without submitting a copy of such agreements but you must also describe and include any written agreements you have entered into with the primary promoter and/or regional center, new commercial enterprise, and affiliated job-creating entity in accordance with INA section 203(b)(5)(K)(iii).

Where To File?

Please visit our website at www.uscis.gov/I-956K for the most current information about where to file this petition.

Address Change

If you are not a U.S. citizen, you must notify USCIS of your new address within 10 days of moving from your previous residence. For information on changing your address, go to our website at www.uscis.gov/addresschange, or call the USCIS Contact Center.

NOTE: Do not submit a change of address request to the USCIS Lockbox.

Processing Information

Initial Processing. Once USCIS accepts your petition we will check it for completeness. If you do not properly complete this petition, you will not establish a basis for your eligibility and we may reject or deny your petition.

Requests for More Information. USCIS may request that you provide more information or evidence to support your petition. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

USCIS Forms and Instructions

To ensure you are using the latest version of this petition, visit www.uscis.gov.

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form I-956K, we may take appropriate action on any associated applications or petitions, which may include the denial of any other immigration benefit. In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

DHS Privacy Notice

AUTHORITIES: The information requested on this form, and the associated evidence, is collected under the Immigration and Nationality Act, sections 101, 103, 203, 204, 216A, and 245 (as amended) and the EB-5 Reform and Integrity Act of 2022, Div. BB of the Consolidated Appropriations Act, 2022 (Pub. L. No. 117-103).

PURPOSE: The primary purpose for collecting the requested information on this form is to register with USCIS as a direct or third-party promoter (including migration agents) of a regional center, any new commercial enterprise, an affiliated job-creating entity, or an issuer of securities intended to be offered to immigrant investors in connection with a particular capital investment project. DHS will use the information you provide to register as a promoter or to take other appropriate action authorized by law. The identifying information requested on this form will allow DHS to perform standard background checks with law enforcement agencies. These background checks may reveal derogatory information that may result in suspension or permanent bar of your registration or other appropriation actions authorized by law.

DISCLOSURE: The information you provide is voluntary. However, failure to provide the requested information, and any requested evidence, may delay a final decision or result in rejection of an associated registration or other appropriate actions authorized by law.

ROUTINE USES: DHS may share the information you provide on this registration with other Federal, state, local, and foreign government agencies and authorized organizations. DHS follows approved routine uses described in the associated published system of records notices [DHS/USCIS-001- Alien File, Index, and National File Tracking System of Records, DHS/USCIS-007 - Benefits Information System, and DHS/ALL-037 E-Authentication Records System of Records] and published the privacy impact assessments [DHS/USCIS/PIA-071 myUSCIS Account Experience and the forthcoming EB-5 PIA], which you can find at www.dhs.gov/privacy. DHS may also share the information, as appropriate, for law enforcement purposes or in the interest of national security.

Paperwork Reduction Act

USCIS may not conduct or sponsor an information collection, and you are not required to respond to a collection of information, unless it displays a currently valid Office of Management and Budget (OMB) control number. The public reporting burden for this collection of information is estimated at 2.04 hours per response, including the time for reviewing instructions, gathering the required documentation and information, completing the form, preparing statements, attaching necessary documentation, and submitting the form. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: U.S. Citizenship and Immigration Services, Office of Policy and Strategy, Regulatory Coordination Division, 5900 Capital Gateway Drive, Mail Stop #2140, Camp Springs, MD 20588-0009; OMB No. 1615-0159. **Do not mail your completed Form I-956K to this address.**